

IN THE OHIO COURT THAT HANDLED THE CASE — LOCAL CAPTION MUST BE CONFIRMED
CRIMINAL DIVISION

STATE OF OHIO,
Respondent,

v.

ALEXANDRINA-KATHARINE MONTGOMERY-VANDENBERG-OYELARAN Y FITZWILLIAM
III,
Applicant.

DOCKET NO.: 0123-45-2026-CR-900123.00-AB-CDE/2201

Application for Expungement of a Qualifying Marijuana or Hashish Possession Conviction

STATUTORY AUTHORITY

Ohio Rev. Code § 2953.321 — application concerning a qualifying marijuana or hashish possession conviction

Ohio Rev. Code § 2953.61 — same-act multiple-charge limitation that must be screened before filing

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the Ohio court that handled the case, where the proceedings occurred.
2. Venue is proper in this Court because the criminal proceedings that are the subject of this application occurred in the Ohio court and county where the case was handled.

II. PARTIES

3. Applicant is Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III, whose address is 12345 Southwest Grandview Boulevard Northeast, Building 7, Apartment 4321-B, Unincorporated Township of Long Hollow Crossing, Ohio 43215-9999.
4. Respondent is the State of Ohio.

III. FACTS AND CASE HISTORY

5. Applicant was charged with [COMPLETE CHARGE DESCRIPTION, INCLUDING EVERY COUNT AND EVERY STATUTORY SUBSECTION, MUST BE COPIED WORD FOR WORD FROM THE CERTIFIED CHARGING DOCUMENT AND DISPOSITION] by [ARRESTING AGENCY MUST BE CONFIRMED]. [ARREST DATE TO BE CONFIRMED]
6. The matter was assigned Docket Number 0123-45-2026-CR-900123.00-AB-CDE/2201.
7. The matter was resolved with the following disposition: [COMPLETE DISPOSITION, INCLUDING EVERY COUNT AND THE DISPOSITION OF EACH, MUST BE CONFIRMED FROM THE COURT RECORD AND THE CERTIFIED DISPOSITION]. [DISPOSITION DATE TO BE CONFIRMED]

IV. ELIGIBILITY ALLEGATIONS

8. Applicant may be eligible for expungement on the following basis: [STATUTORY ELIGIBILITY BASIS, INCLUDING THE REMEDY, THE STATUTORY VERSION, THE TIMING AND EVERY LOCAL-PRACTICE CONDITION, MUST BE CONFIRMED AGAINST THE CITED STATUTE AND THE CERTIFIED RECORD].
9. Applicant must disclose and review every companion charge and every pending proceeding before use.
10. Applicant will attach source evidence identifying the qualifying statutory subsection, the amount where relevant, and that the conviction predates March 20, 2026.
11. The filing court must independently confirm the 45-to-90-day hearing schedule, prosecutor notice, and any required probation inquiry.

IMPORTANT: Applicant may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Applicant respectfully requests that this Court:

- (a) Grant only the expungement relief authorized by the cited statute after the Court confirms eligibility and scope;
- (b) Identify in its order the records and custodians lawfully reached; and
- (c) Grant no relief beyond the cited statutory authority.

VI. VERIFICATION

Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III
12345 Southwest Grandview Boulevard Northeast, Building 7, Apartment 4321-B, Unincorporated
Township of Long Hollow Crossing, Ohio 43215-9999

Date: _____

[NOTE: Date of birth and Social Security Number should be added by applicant if required by the applicable form or local court rules.]

PROPOSED ORDER

IN THE OHIO COURT THAT HANDLED THE CASE — LOCAL CAPTION MUST BE CONFIRMED

STATE OF OHIO v. ALEXANDRINA-KATHARINE MONTGOMERY-VANDENBERG-OYELARAN
Y FITZWILLIAM III
DOCKET NO.: 0123-45-2026-CR-900123.00-AB-CDE/2201

[PROPOSED] ORDER

AND NOW, this _____ day of _____, 20____, upon consideration of the Application

filed herein, and any response thereto, it is hereby ORDERED and DECREED that:

Only after the Court independently finds the statutory requirements satisfied, all official records pertaining to the qualifying conviction, and all index references to those records, shall be destroyed, deleted, or erased only to the extent Ohio Rev. Code § 2953.321 authorizes.

No agency shall treat this unsigned proposed order as effective; relief begins only upon entry of a signed judicial order.

BY THE COURT:

J.

ATTACHMENTS

Attachments submitted with this application:

- Certified disposition (participant must obtain)
- BCI criminal-history record (participant must obtain)
- Ohio Rev. Code Sec. 2953.61 same-act charge schedule: a written list of every charge arising from the same act as the qualifying conviction (participant must assemble)
- Evidence of the qualifying statutory subsection and amount, where relevant (participant must obtain)
- Evidence that the qualifying conviction predates March 20, 2026 (participant must obtain)
- Unsigned proposed expungement order with judicial date and signature blank (included in this review artifact)

Prepared by applicant using RCAP evidence build. This is not an official court form.